



Real Estate Regulatory Authority, Punjab
First Floor, Block-B, Plot No. 3, Sector-18 A, Madhya Marg, Chandigarh – 160018
Phone No. 0172-5139800, email id: pschairrera@punjab.gov.in & pachairrera@punjab.gov.in

Before the Bench of Sh. Rakesh Kumar Goyal, Chairman.

**Execution No. 28 of 2026
in GCNo03552024**

**1.SUNIL KUMAR
2.ANJALI SHARMA
Vs.**

**OMAXE CHANDIGARH EXTENSION DEVELOPERS PRIVATE LIMITED
THROUGH ITS M.D.**

Present: Sh.Vipin Kumar, Advocate for the complainant.

Sh.Vipin Kumar, Advocate, attended on behalf of the complainant and submitted that, although interest in the execution proceedings has been awarded only up to 21.08.2024 on the premise that possession had been offered, the order under Section 31 read with Section 40 of the Act was passed on 04.02.2026, yet the complainant has neither been handed over physical possession of the apartment nor permitted to inspect or visit the same. He further submitted that the promoter is to be directed to hand over complete and lawful physical possession of the apartment within 15 days from the receipt of this order, after ensuring that the apartment is fully complete in all respects and ready for occupation strictly in accordance with the terms of the agreement. The complainant further submitted that in case, possession is not handed over by the said date, it shall prima facie indicate that the apartment was not in a fit condition for handing over when possession was purportedly offered vide letter dated 21.08.2024 by the promoter. The respondent is directed to file a reply to the miscellaneous application filed in Execution No. 28 of 2026.

The matter is adjourned to 31.07.2026 for filing the reply to the miscellaneous application, once filed, in Execution No. 28 of 2026 by the respondent. The promoter should file the status report of the condition of the flat & the time required to hand over the possession. The promoter will also submit, whether the due possession has been handed over to the adjoining left and right side of the Flat No.CRPB/TF/450P18 of the complaint.

**Chandigarh
Dated:06.07.2026**


**(Rakesh Kumar Goyal),
Chairman,
RERA, Punjab**